

# MASTER SERVICE AGREEMENT BETWEEN CATALYST INDUSTRIES LTD. AND PRIME ASSOCIATES CORP.

Between: **Catalyst Industries Ltd.** (Service Provider) and **Prime Associates Corp.** (Client)

Effective Date: 2024-07-15

Termination Date: 2028-07-15

Governing Law: the laws of the State of New York

## 1. Scope of Services

Catalyst Industries Ltd. shall provide to Prime Associates Corp. the following services as detailed in Schedule A attached hereto: project management, technical implementation, quality assurance, documentation, and post-deployment support. Any modification to the scope of services must be agreed in writing by both Parties.

## 2. Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

## 3. Payment Terms

Prime Associates Corp. shall pay Catalyst Industries Ltd. a fee of Rs. 90,00,000 (Rupees Ninety lakh Only) for the Services rendered under this Agreement. Payment shall be made within thirty (30) days of receipt of an invoice. All amounts are exclusive of applicable taxes, which shall be borne by Prime Associates Corp.. Late payments shall attract interest at the rate of eighteen percent (18%) per annum.

## 4. Confidentiality

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

## 5. Definitions

In this Agreement, the following terms shall have the meanings ascribed to them herein. "Agreement" means this service agreement Agreement dated 2024-07-15 between Catalyst and Prime Associates Corp.. "Services" means the services described in Clause 2. "Confidential Information" means any information disclosed by either Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

## 6. Data Protection

Each Party shall comply with all applicable data protection laws and regulations. Catalyst Industries Ltd. shall process personal data of Prime Associates Corp.'s employees or customers only as necessary to perform the Services and strictly in accordance with Prime Associates Corp.'s written instructions. Catalyst Industries Ltd. shall implement appropriate technical and organisational measures to protect such data.

## **7. Force Majeure**

Neither Party shall be liable for any failure or delay in performance under this Agreement (other than payment obligations) to the extent caused by circumstances beyond the reasonable control of the affected Party, including but not limited to acts of God, war, terrorism, riots, epidemics, government actions, or internet or telecommunications failures. The affected Party shall promptly notify the other.

## **8. Representations and Warranties**

Each Party represents and warrants that: (a) it has full power and authority to enter into this Agreement; (b) this Agreement has been duly authorised and constitutes a valid, binding obligation; (c) the execution, delivery, and performance of this Agreement do not violate any applicable law, regulation, or third-party agreement.

## **9. Entire Agreement**

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

## **10. Audit Rights**

Prime Associates Corp. or its authorised representative shall have the right, upon giving fifteen (15) days' written notice, to audit Catalyst Industries Ltd.'s records relating to the Services and payments under this Agreement. Such audit shall be conducted during normal business hours and shall not unreasonably disrupt Catalyst Industries Ltd.'s operations. The cost of the audit shall be borne by Prime Associates Corp., unless the audit reveals an overcharge of more than five percent (5%), in which case Catalyst Industries Ltd. shall bear the cost.

**IN WITNESS WHEREOF**

**Service Provider**

Catalyst Industries Ltd.

Signature: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_

**Client**

Prime Associates Corp.

Signature: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_